ing this order should be addressed to the War Production Board, Washington, 25, D. C., Ref: L-49.

Issued this 5th day of October 1943.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 43-16258; Filed, October 5, 1943; 11:27 a. m.]

PART 3291—CONSUMERS DURABLE GOODS

[Interpretation 1 as Amended Oct. 5, 1943, to General Limitation Order L-49]

BEDS, BEDSPRINGS, MATTRESSES AND DUAL SLEEPING EQUIPMENT

Interpretation 1 to General Limitation Order L-49, § 3291.70, is hereby amended to read as follows:

Some question has arisen as to the effect of L-49 upon the repair and renovation of used coil, flat, and fabric bedsprings. Paragraph (a) (5) of L-49 defines a manufacturer as "any person who manufactures or assembles bedding products . . ." and paragraph (a) (6) defines a renovator as "any person who repairs used bedding products."

Persons who obtain new or used parts, or used bedsprings, which they tear down completely and which they thereafter reassemble into bedsprings are engaged in manufacturing operations regardless of the fact that only used parts may be involved. As manufacturers they become subject to weight and quota limitations on bedsprings contained in L-49. Persons who take used bedsprings and remove only worn parts of such springs which they replace with either new parts or parts which have been used in bedsprings other than the specific ones being repaired are renovators. Renovators of coil, flat and fabric bedsprings are not subject to any restrictions contained in L-49.

Issued this 5th day of October 1943.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 43-16259; Filed, October 5, 1943; 11:28 a. m.]

PART 3291—CONSUMERS DURABLE GOODS

[Interpretation 2 to General Limitation Order L-49]

BEDS, BEDSPRINGS, MATTRESSES AND DUAL SLEEPING EQUIPMENT

The following interpretation is issued with respect to General Limitation Order L-49:

Some question has arisen as to the effect of L-49 [§ 3291.70] upon the repair and renovation of used innerspring mattresses. Paragraph (a) (5) defines a manufacturer as "any person who manufactures or assembles bedding products * * *" and paragraph (a) (6) defines a renovator as "any person who repairs used bedding products."

Persons who obtain new or used innerspring constructions which they use in the assembly of a mattress by combining the innersprings with filling material and covering them with ticking or other covering material are engaged in manufacturing operations, regardless of the fact that only used innerspring constructions may be involved. As manufacturers they become subject to the restrictions on production of mattresses, pads and pillows contained in L-49.

Persons who obtain a completely finished innerspring mattress with innerspring construction, filling and covering which they tear down and renovate by repairing the innerspring construction, re-working the filling material and re-covering where necessary are renovators, and as such are not subject to the restrictions in L-49 on the production of mattresses, pads and pillows. They are, however, subject to the restrictions on renovators of bedding products in the order.

Issued this 5th day of October 1943.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 43-16260; Filed, October 5, 1943; 11:27 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—General Land Office

Subchapter Z—Withdrawals, Restorations, Classifications, Land Transfers, and Executive Orders

[Public Land Order 171]

PART 298—PUBLIC LAND ORDERS

WYOMING

Revocation of Executive Order No. 5886 of July 12, 1932, withdrawing public lands.

By virtue of the authority contained in sec. 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (U.S.C., title 43, sec. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

§ 298.171 *Public Land Order 171.* Executive Order No. 5886 of July 12, 1932, withdrawing public lands in Wyoming, pending a resurvey, and heretofore partially revoked, is hereby revoked as to the remainder of the lands affected thereby.

This order shall become effective upon the date of the official filing of the plats of resurvey of the lands involved.

ABE FORTAS,
Acting Secretary of the Interior.

SEPTEMBER 24, 1943.

[F. R. Doc. 43-16240; Filed, October 5, 1943; 9:45 a. m.]

TITLE 44—PUBLIC PROPERTY AND WORKS

Chapter I—National Archives

PART 2—AUTHENTICATION AND ATTESTATION OF COPIES OF ARCHIVES IN THE CUSTODY OF THE ARCHIVIST OF THE UNITED STATES

Section 2.1 is amended to read as follows:

§ 2.1 *Designation of persons authorized.* (a) The Director of Reference Service of the National Archives is authorized to authenticate and attest for and in the name of the Archivist of the United States copies or reproductions of archives or records in the official custody of the Archivist.

(b) In the absence or inability of the Director of Reference Service, the Administrative Secretary of the National Archives is authorized to authenticate and attest the aforesaid copies or reproductions in the place and stead of the Director of Reference Service.

(48 Stat. 1123, 49 Stat. 1821; 44 U.S.C. 300h)

[SEAL] SOLON J. BUCK,
Archivist of the United States.

SEPTEMBER 30, 1943.

[F. R. Doc. 43-16202; Filed, October 4, 1943; 2:40 p. m.]

Notices

DEPARTMENT OF LABOR.

Wage and Hour Division.

RECORD KEEPING REQUIREMENTS

NOTICE OF OPPORTUNITY TO SHOW CAUSE

In the matter of the amendment to the record keeping regulations, Part 516, issued pursuant to authority contained in section 11 (c) of the Fair Labor Standards Act of 1938.

Notice is hereby given of opportunity to show cause why the following proposed amendment to Title 29, Chapter V, Code of Federal Regulations, Part 516, issued September 15, 1941, pursuant to authority contained in section 11 (c) of the Fair Labor Standards Act of 1938, should not be adopted by the Administrator:

§ 516.1 (b)[1] In addition to keeping other records required by the regulations, an employer who makes deductions from the wages of his employees for "board, lodging, or other facilities" (as these terms are used in section 3 (m) of the Act) furnished to them by the employer or by an affiliated person, or who furnishes such "board, lodging, or other facilities" to his employees as an addition to wages, shall maintain and preserve records, substantiating the cost of furnishing each class of facility.[2] Such

[1] This record keeping requirement has been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

[2] Separate records of the cost of each item furnished to an employee need not be kept. The requirement may be met by keeping combined records of the costs incurred in furnishing each class of facility, such as housing, fuel, or merchandise furnished through a company store or commissary. Thus, in the case of an employer who furnishes housing, separate cost records need not be kept for each house. The cost of maintenance and repairs for all the houses may be shown together. Original cost and depreciation records may be kept for groups of houses acquired at the same time. Costs incurred in furnishing similar or closely related facilities, moreover, may be shown in combined records. For example, if joint costs are incurred in furnishing both housing and electricity and the records are not readily separable, the housing and electricity together may be treated as a "class" of facility for record keeping purposes. Merchandise furnished at a company store may be considered as a "class" of facility and the records may show the cost of the opera-

records shall include itemized accounts[3] showing the nature and amount of any expenditures entering into the computation of the reasonable cost as defined in § 531.1 of the regulations, and shall contain the data required to compute the amount of the depreciated investment in any assets allocable to the furnishing of the facilities, including the date of acquisition or construction, the original cost, the rate of depreciation and the total amount of accumulated depreciation on such assets.[4]

All objections, protests or statements in opposition to or in support of the proposed amendment should be filed with the Administrator of the Wage and Hour Division, 165 West 46th Street, New York 19, New York, in writing, not later than October 21, 1943.

Signed at New York, New York, this 30th day of September, 1943.

L. METCALFE WALLING,
Administrator.

[F. R. Doc. 43-16205; Filed, October 4, 1943; 4:36 p. m.]

CIVIL AERONAUTICS BOARD.

[Docket No. 624]

TRANSCONTINENTAL & WESTERN AIR, INC.

NOTICE OF HEARING

In the matter of the application of Transcontinental and Western Air, Inc., for amendment of its existing certificate of public convenience and necessity for route No. 2, so as to include Lancaster, Pa., as an intermediate point.

Notice is hereby given pursuant to the Civil Aeronautics Act of 1938, as amended, particularly sections 401 and 1001 of the said Act, in the above-entitled proceeding, that hearing is assigned for October 15, 1943, at 10:00 a. m. (eastern war time) in the foyer of the Auditorium, Commerce Building, 14th Street and Constitution Avenue NW., Washington, D. C., before Examiner Albert F. Beitel.

Dated Washington, D. C., October 1, 1943.

By the Civil Aeronautics Board.

[SEAL] FRED A. TOOMBS,
Secretary.

[F. R. Doc. 43-16242; Filed, October 5, 1943; 10:26 a. m.]

tion of the store as a whole, or records of the cost of furnishing the different kinds of merchandise may be maintained separately. Where cost records are kept for a "class" of facility rather than for each individual article furnished to employees, the records must also show the gross income derived from each such class of facility; i. e., gross rentals in the case of houses, total sales through the store or commissary, total receipts from sales of fuel, etc.

[3] No particular degree of itemization is prescribed. The amount of detail shown in these accounts should be consistent with good accounting practices, and should be sufficient to enable the Administrator or his representative to verify the nature of the expenditure and the amount by reference to the basic records which must be preserved pursuant to § 516.15 (c) (3).

[4] If the assets include merchandise held for sale to employees, the records should contain data from which the average net investment in inventory can be determined.

FEDERAL POWER COMMISSION.

[Docket Nos. G-442, G-498]

LONE STAR GAS COMPANY

ORDER CONSOLIDATING PROCEEDINGS AND FIXING DATE OF HEARING

SEPTEMBER 30, 1943.

Upon consideration of the following applications filed by the Lone Star Gas Company for certificates of public convenience and necessity pursuant to section 7 of the Natural Gas Act, as amended:

(a) Application filed February 22, 1943, and amendment thereto filed April 17, 1943 (Docket No. G-442) for the acquisition and operation of the properties of its predecessor in interest;

(b) Application filed September 6, 1943 (Docket No. G-498) for construction and operation of a pipe line connection between the 16-inch gas pipe line of the Lone Star Gas Company and the 10-inch line of the United Gas Pipe Line Company; and

It appearing to the Commission that:

Good cause exists for consolidating the above-entitled matters for the purpose of hearing;

The Commission *Orders*, That:

(A) The proceedings in the above matters be and they hereby are consolidated for the purpose of hearing;

(B) A public hearing be held commencing on October 21, 1943, at 9:45 a. m., in Room No. 520, Civil Service Examination Room, United States Courthouse Building, Fort Worth, Texas, respecting the matters involved and the issues presented in this proceeding;

(C) Interested State commissions may participate in this hearing as provided in § 67.4 of the Provisional Rules of Practice and Regulations under the Natural Gas Act.

By the Commission.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 43-16237; Filed, October 5, 1943; 9:45 a. m.]

[Docket Nos. G-472, G-474, G-475]

EL PASO NATURAL GAS COMPANY

ORDER CONSOLIDATING PROCEEDINGS AND FIXING DATE OF HEARING

SEPTEMBER 30, 1943.

Upon consideration of the following applications filed by the El Paso Natural Gas Company for certificates of public convenience and necessity pursuant to section 7 of the Natural Gas Act, as amended:

(a) Application filed June 2, 1943 (Docket No. G-472) for construction and operation of an eight and five-eighths-inch loop line approximately 35.3 miles in length, extending in a northwesterly direction from the Applicant's No. 4 compressor station in Luna County, New Mexico, and a six and five-eighths-inch loop line approximately 23.3 miles in length, extending in a northerly direction from the Applicant's Morenci compressor station in Greenlee County, Arizona;

(b) Application filed June 14, 1943 (Docket No. G-474) for the acquisition and operation of the facilities of Applicant's wholly-owned subsidiary, Fort Huachuca Gas Company;

(c) Application filed June 14, 1943 (Docket No. G-475) for the acquisition and operation of a portion of the facilities of Applicant's wholly-owned subsidiary, El Paso Gas Transportation Corporation; and

It appearing to the Commission that:

Good cause exists for consolidating the above-entitled matters for the purpose of hearing;

The Commission *orders*, That:

(A) The proceedings in the above matters be and they hereby are consolidated for the purpose of hearing;

(B) A public hearing be held commencing on October 25, 1943, at 9:45 a. m. in Room No. 520, Civil Service Examination Room, United States Courthouse Building, Fort Worth, Texas, respecting the matters involved and the issues presented in this proceeding;

(C) Interested State commissions may participate in this hearing as provided in § 67.4 of the Provisional Rules of Practice and Regulations under the Natural Gas Act.

By the Commission.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 43-16238; Filed, October 5, 1943; 9:45 a. m.]

OFFICE OF ALIEN PROPERTY CUSTODIAN.

[Vesting Order 2227]

ESTATE OF MARGARET ROBLING

In re: Estate of Margaret Robling, deceased; File D-28-4124; E. T. sec. 7066.

Under the authority of the Trading with the Enemy Act, as amended, and Executive Order 9095, as amended, and pursuant to law, the Alien Property Custodian after investigation,

Finding that—

(1) The property and interests hereinafter described are property which is in the process of administration by Scranton Lackawanna Trust Company, 506 Spruce Street, Scranton, Pennsylvania, Executor, acting under the judicial supervision of the Orphans' Court of Lackawanna County, Pennsylvania;

(2) Such property and interests are payable or deliverable to, or claimed by, nationals of a designated enemy country, Germany, namely,

Nationals and Last Known Address

Benedikt Heinrich Werre, Germany.

Anna Maria Wipperfuhrt nee Werre, Germany.

Bernhart Friedrich Schmies, Germany.

Regina Johanna Shorn (Regina Johanna Schorn) nee Schmies, Germany.

Martha Maria Freidlich (Margaretha Maria Friedlich) nee Schmies, Germany.

Mathias Gaspers (Matthias Gaspars), Germany.

Johannes Gaspers (Johannes Gaspars), Germany.

Bernard Gaspers (Bernhard Gaspars), Germany.

Susanna Batzonath (Susanna Ratzonath) nee Gaspers, Germany.

And determining that—

(3) If such nationals are persons not within a designated enemy country, the na-